lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, with a ninety-day preference-right filing period for filing such applications by veterans of World War II and others entitled to preference:

INDIAN CREEK

Beginning at a point on the north right-of-way line of the Alaska Railroad at Mile Post 89, on the north shore of Turnagain Arm, thence by metes and bounds:
North, 1.50 miles to approximate latitude 61°00'20" N. longitude 149°31'40" W.;
East, 1.41 miles;
South, 1.88 miles to north right-of-way line of Alaska Railroad at Mile Post 87.5;
Northwesterly, along right-of-way line to point of beginning.

The tract as described contains approximately 1,270 acres.

BIRD CREEK

A strip of land 1 mile wide, ½ mile on each side of Bird Creek, extending from the north right-of-way line of the Alaska Railroad, upstream 6 miles to an approximate elevation of 1,000 feet.
A strip of land 1 mile wide, ½ mile on each side of Penguin Creek from its confluence with Bird Creek, upstream 10 miles to an approximate elevation of 2,000 feet.
A strip of land 1 mile wide, ½ mile on each side of Little Penguin Creek from the north right-of-way line of the Alaska Railroad to its source, being less than 1 mile in length.

The tracts as described aggregate approximately 9,000 acres.

GLACIER CREEK

U. S. Survey No. 3042, accepted April 13, 1951.
U. S. Surveys Nos. 3043, 3044, and 3045, unapproved.

The tracts as described aggregate approximately 308 acres.

4. Effective at 10:00 a. m. on the 35th day from the date of this order, any public lands described in paragraph 1 which are occupied by holders of permits from the Department of Agriculture who own valuable improvements thereon, are restored, subject to valid existing rights, for purchase as home sites under section 10 of the act of May 14, 1898, as amended by the act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461).

5. Subject to valid existing rights, including rights of Alaska natives, and to the provisions of existing withdrawals, the public lands described in paragraph 1 hereof, except as they are affected by paragraphs 2, 3, and 4 hereof, are hereby withdrawn from settlement, location, sale, and entry, and reserved for classification.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JANUARY 25, 1952.

[F. R. Doc. 52-1210; Filed, Jan. 30, 1952; 8:46 a. m.]

[Public Land Order 798]

ALASKA

REVOCATION OF EXECUTIVE ORDER NO. 7309 OF FEBRUARY 28, 1936, WITHDRAWING PUBLIC LANDS IN AID OF LEGISLATION

By virtue of the authority vested in the President by the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 7309 of February 28, 1936, withdrawing public lands in aid of legislation, which was revoked in part by Public Land Order No. 738 of July 28, 1951, is hereby revoked as to the remaining lands described as follows:

FAIRBANKS MERIDIAN

T. 1 S., R. 1 W.,
Sec. 9, lot 12, SW¼SW¼;
Sec. 15, lot 3, W½SW¼.

The areas described aggregate 186.76 acres.

The lands shall not become subject to the initiation of any rights or to any disposition under the public-land laws until it is so provided by orders of classification to be issued by the Regional Administrator, Bureau of Land Management, Anchorage, Alaska, opening the lands to application under the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, with a ninety-day preference right period for filing such applications by veterans of World War II for whose service recognition is granted by the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, and by other qualified persons entitled to credit for service under the said act, or opening the lands to application under the Alaska Public Sale Act of August 30, 1949, 63 Stat. 679 (48 U. S. C. 364a–364e).

OSCAR L. CHAPMAN,
Secretary of the Interior.

JANUARY 25, 1952.

[F. R. Doc. 52-1211; Filed, Jan. 30, 1952; 8:46 a. m.]

[Public Land Order 799]

ARIZONA

PARTIAL REVOCATION OF PUBLIC LAND ORDERS NOS. 44 AND 51, AS AMENDED, AND REVOCATION OF PUBLIC LAND ORDER NO. 72 AS AMENDED, WITHDRAWING PUBLIC LANDS FOR USE OF THE DEFENSE PLANT CORPORATION

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Orders No. 44 of September 30, 1942, No. 51 of November 3, 1942, and No. 72 of December 23, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing certain public lands for the use of the Defense Plant Corporation in connection with the operation of a school for training army aircraft pilots, are hereby revoked so far as they affect the following-described lands:

GILA AND SALT RIVER MERIDIAN

T. 15 S., R. 11 E.,
SEC. 12, those portions of the E½ and SW¼ lying south of the Ajo-Tucson highway.
T. 15 S., R. 12 E.,
SEC. 7, that portion of the W½ lying south of the Ajo Tucson highway;
SEC. 22, E½SE¼.

The areas described aggregate approximately 152.44 acres.

While the areas above described were included in the rectangular system of surveys of the townships mentioned, an additional survey would be necessary before some of the lands could be disposed of. The lands vary from rolling to rough and rocky desert, and are chiefly valuable for grazing.

No applications for these lands may be allowed under the homestead, small tract, desert land, or any other nonmineral public land laws, unless the lands have already been classified as valuable or suitable for such types of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides) of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit